

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GABRIELLE JACKSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MARIA LANDY
TAX ID # 947153, SGT. WILLIAM HUGHES TAX
ID # 952868, AND POLICE OFFICERS JOHN AND JIM
DOE, (FICTITIOUS NAMES BECAUSE THEIR
IDENTITIES ARE UNKNOWN) ALL SUED
IN THEIR CAPACITIES AS POLICE OFFICERS AND
IN THEIR INDIVIDUAL CAPACITIES,

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 15, 2021

/s/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

SUMMONS

Index No.

Date Purchased:

Plaintiff designates New
York County as the place
of Trial.

The basis of the venue is
New York County is the
place where the cause of
action arose.

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

The New York City Police Dept.
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Maria Landy
Tax ID #947153
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Sgt. William Hughes
Tax ID #952868
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officers John and Jim Doe
New York City Police Department
One Police Plaza
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GABRIELLE JACKSON,

VERIFIED COMPLAINT

Plaintiff,

Index No.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MARIA LANDY
TAX ID # 947153, SGT. WILLIAM HUGHES TAX
ID # 952868, AND POLICE OFFICERS JOHN AND JIM
DOE, (FICTITIOUS NAMES BECAUSE THEIR
IDENTITIES ARE UNKNOWN) ALL SUED
IN THEIR CAPACITIES AS POLICE OFFICERS AND
IN THEIR INDIVIDUAL CAPACITIES,

Defendants.
-----X

Plaintiff, Gabrielle Jackson, by her attorney, Royce Russell, Esq., R-SQUARE, ESQ.
PLLC., as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter respectively referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief, Police Officer Maria Landy Tax ID #947153, hereinafter referred to as "Police Officer Landy", at all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the "CITY" and/or "NYPD" and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

4. Upon information and belief, Sgt. William Hughes Tax ID #952868, hereinafter referred to as “Sgt. Hughes”, at all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the “CITY” and/or “NYPD” and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
5. Upon information and belief, Police Officer John Doe, at all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department. Hereinafter referred to as ‘John’, named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief, Police Officer Jim Doe, at all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department. Hereinafter referred to as ‘Jim’, named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 18th day of January 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
7. Upon information and belief, other unknown Police Officers named herein in fictitious capacities as their names are currently unknown, all times hereinafter mentioned, and on the 18th day of January 2021 was/were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police

Officers and employees of the City of New York, and/or New York City Police Department.

8. Hereinafter, the Police Officers present at the location set forth below are collectively referred to as “Officers and/or Defendants”.
9. The incident set forth below occurred in the vicinity of City Hall Park; Broadway and Chambers Street in the County of New York within the State of New York, hereinafter referred to as “the location”, on January 18, 2021, at approximately 8:00 p.m. - 9:00 p.m.
10. At all relevant times hereinafter mentioned, Plaintiff, Gabrielle Jackson, hereinafter referred to as “Jackson and/or Plaintiff” was a resident of New York County, residing at 34 Ditmars Street #3 Brooklyn, NY 11221.
11. The Plaintiff has filed a Notice of Claim advising the Defendants of the nature of the claims on or about February 2, 2021.
12. The Plaintiff’s 50H hearing was held on April 27, 2021.
13. The Defendants have not offered to settle the Plaintiff claims. This action is brought within a year and ninety days of the date when the cause of action arose.

STATEMENT OF FACTS

14. On January 18, 2021 at approximately 8:00 p.m. - 9:00 p.m., Plaintiff was lawfully at a Martin Luther King march at City Hall Park; Broadway and Chambers Street in the County of New York when Plaintiff was looking for her friend who oversees media related to the said march.
15. Plaintiff, upon meeting her friend, encountered Police Officers who forced both the Plaintiff and her friend against a bench ordering the crowd to disperse. Jackson and friend could not disperse because they were being held by the Police Officers.

16. Plaintiff was able to free herself and began to disperse when she then observed another friend being assaulted by Police Officers.
17. Jackson verbally responded to the Police Officer's misconduct and covered her friend who was being battered and assaulted by the Defendants. The Defendants immediately then battered and assaulted the Plaintiff. The Plaintiff was thrown to the ground, kneed, and struck about the body by Defendants (Police Officer Landy, Sgt. Hughes, John and Jim).
18. Plaintiff was placed in an illegal chokehold whereupon her air flow was restricted.
19. Jackson suffered scratches around and underneath her neck.
20. Jackson was placed in plastic "Rip-Ties". Defendants then intentionally tightened said "Rip-Ties" to the point Jackson lost circulation in both of her wrists which lead to Plaintiff losing feeling and sensation in all her fingers.
21. Plaintiff was elevated in the air and carried to a police van. Defendants intentionally carried Jackson with her arms/shoulders held and hyper-extended behind her body. As a result of being carried in this manner, the Plaintiff suffered injury to her shoulder which now dislocates upon certain movements.
22. On the date of the Plaintiff's arrest, upon information and belief, her shoulder was separated.
23. Jackson's complaints of physical pain were ignored by Defendants. Jackson was forced into a police vehicle but not secured by any seat belt.
24. Defendants transported the Plaintiff and others who were arrested to the Precinct. However, as a result of not being secured by a seat belt, she was thrown about the police vehicle. Jackson and others were also taunted by Defendants during their transport.
25. Jackson was illegally searched and shackled at the precinct, placed in a holding cell, and illegally detained for several hours.

26. Jackson was threatened with being hospitalized and/or being sedated if she was not quiet. Jackson refused to keep quiet.
27. At approximately 1:00 a.m., the Plaintiff was taken to Bellevue Hospital in handcuffs against her will and in retaliation to speaking out while detained whereupon she was examined for mental health disorder(s).
28. Plaintiff was handcuffed and shackled during her examination at Bellevue Hospital which was completed in 15 seconds as the examining doctor quickly concluded there was nothing mentally wrong with the Plaintiff.
29. Defendants illegally held the Plaintiff handcuffed at the hospital for another 30-45 minutes after she was discharged. During Plaintiff's transport to and from the hospital, she remained handcuffed and shackled. She was illegally detained until 5:00 a.m. whereupon she was issued a DAT/Summon.
30. As a result of the Defendants' misconduct, Jackson suffered scaring, bruising to her ankles, wrists and neck and injury to her shoulder. Jackson is currently seeking medical treatment without any forms of insurance.
31. Jackson's arrest, imprisonment, detention and the physical contact were all without just cause, provocation and said actions were offensive to Jackson, unprivileged and without her consent.
32. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.
33. The City of New York, their agents, servants or employees intended to confine Jackson who was conscious of said confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds thereof.

34. The City, their agents, servants and employees as aforementioned committed a battery/assault upon the Plaintiff, without just cause or justification, and in an excessive manner and force with the intention to cause physical contact and did in fact cause contact and serious injuries to Jackson's mind and body.
35. Jackson was aware of the threat of imminent harm and unconsented contact and actually feared it while the Officers had the apparent ability to cause said unlawful and unconsented contact and harm and actually cause it to occur.
36. The Notice of Jackson's Claim and Notice of Intention to sue for damages eliciting the nature of claim, the date of, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant "CITY."
37. That a 50(h) hearing was held on April 27, 2021.
38. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.
39. That this action is commenced within one year and 90 days after the cause of action arose.
40. It is hereby alleged, pursuant to CPLR §1603, that this action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL DEFENDANTS FOR FALSE DETENTION AND FALSE ARREST, THE
PLAINTIFF ALLEGES:**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That on the 18th day of January 2021, at the approximate time of 8:00 p.m. - 9:00 p.m. at or near the “location,” the Plaintiff was handcuffed and placed under arrest by the Defendants “Officers”, their agents, servants and/or employees without just cause or grounds and held against her will under full force of arms. Plaintiff was photographed, fingerprint and searched.
43. That said arrest was caused by the Defendants “Officers”, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds and based on an illegal seizure and search of the Plaintiff, when the Defendants “Officers” lacked caused to believe that the Plaintiff committed or was about to commit a crime or was guilty of any crimes.
44. The Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the Defendants “Officers”, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
45. That the Defendants “Officers”, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the Plaintiff; that the Plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
46. That by reason of the aforesaid false detention, false arrest, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, loss of freedom and the said Plaintiff has been otherwise damaged.
47. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT:**

48. The Plaintiff/Jackson repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “47” with the same force and effect as if more fully and at length set forth herein.
49. That beginning on or about the 18th day of January, 2021, at approximately 8:00 p.m. - 9:00 p.m. at or near the “location” until the Plaintiff/Jackson was released, the Defendants “Officers”, their agents, servants and/or employees imprisoned the Plaintiff against her will at Brookdale Hospital as she was forced to go to said hospital in handcuffs by the Defendants/”Officers” without any just cause or grounds.
50. That said imprisonment was caused by the Defendants “Officers”, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or causes to believe that the Plaintiff/Jackson was guilty of any crimes.
51. The Plaintiff/Jackson was wholly innocent and did not contribute in any way or manner to her arrest, imprisonment and detention by the Defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest, imprisonment and detention entirely against her will.
52. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; the Plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged.
53. That the Plaintiff was confined against her will until she was released.
54. That by reason of the aforesaid false arrest, imprisonment and detention, the Plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom, and the said Plaintiff has been otherwise damaged.

55. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
BATTERY AND ASSAULT, THE PLAINTIFF ALLEGES:**

56. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "55" with the same force and effect as if more fully and at length set forth herein.

57. That commencing on the 18th day of January 2021, at the time of 8:00 p.m. - 9:00 p.m. at "the location", the Defendants Police Officer Landy, Sgt. Hughes, John and Jim, while acting within the scope of their employment as police officers and as agents for the Defendant the "CITY" and "NYPD", without just cause or provocation illegally pat-down/searched the Plaintiff, battered and assaulted the Plaintiff.

58. Upon information and belief, the "Officers" had absolutely no reason or just cause to detain batter and assault the Plaintiff.

59. The battery, and physical contact was not privileged.

60. The battery took place while the Plaintiff had committed no crime.

61. That the Defendants, their agents, servants and/or employees, including the unknown police officers, acting as agents on behalf of the Defendant "CITY" and/or "NYPD," and within the scope of their employment, intentionally and willfully battered the Plaintiff, in that they had the real or apparent ability to cause imminent harm or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff.

62. That said acts caused apprehension of such offensive contact to the Plaintiff and the Defendants caused such battery/assault in and about her body and limbs.

63. That by reason of the aforesaid intentional battery, assault the Plaintiff suffered offensive

contact and/or psychological injuries to her body mind, and was otherwise damaged.

64. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE AGAINST THE “CITY”, THE PLAINTIFF ALLEGES:

65. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully and at length set forth herein.

66. That the “CITY” and/or “NYPD” were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.

67. That as a result of their negligence, the above-named Plaintiff was falsely detained, illegally seized, illegally searched, falsely arrested, falsely imprisoned, maliciously prosecuted and had her constitutional and civil rights violated.

68. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST ALL NAMED DEFENDANTS FOR 42 U.S.C. §1983 VIOLATIONS, THE PLAINTIFF ALLEGES:

69. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.

70. By the aforesaid acts, the Defendant “Officers” individually and collectively have violated the Plaintiff’s right: to privacy under the First and Fourteenth Amendments; to have her

persons and property be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race, thereby giving rise to a cause of action pursuant to 42 USC §1983.

71. The conduct and actions of the named Defendant police officers, acting under color of law, in seizing the Plaintiff, and upon information and belief in searching the Plaintiff, in battering the Plaintiff, in intimidating the Plaintiff, and in falsely detaining the Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, et seq.

72. Each of the Defendant police officers' actions, individually and collectively, deprived the Plaintiff of her rights including, but not limited to, the right to privacy of her person and/or property; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. §1983 et seq.

73. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections §1983 and §1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH THROUGH NINTH CAUSES OF ACTION: FOR VIOLATIONS
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §§ 1983, 1985 AND
1986 AGAINST THE CITY OF NEW YORK**

74. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "73" with the same force and effect as if more fully and at length set forth herein.

75. That on or about the 18th day of January 2021, at approximately 8:00 p.m. - 9:00 p.m. at or near the “location,” the “Officers” were present thereat as part of their regular and official employment as Police Officers for the Defendant, “City”.
76. Plaintiff was lawfully and properly thereat when the “Officers” acting as agents, servants and/or employees of the Defendant “City”, forcibly stopped, seized and searched the Plaintiff absent of just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.
77. The Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, detained, arrested and imprisoned the Plaintiff because she asked questions and requested the allegations regarding her false arrest, detention and imprisonment.
78. Upon information and belief, the Officers were required to fill out a stop, question and frisk report or any report verifying their actions as well as procedure in an arrest.
79. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
80. Defendants failed to activate their respective body cameras to record their actions and more specifically the arrest of Jackson.
81. Upon information and belief, the Officers fabricated a reason for seizing, searching, detaining, arresting imprisoning and forcibly assaulting the Plaintiff.
82. Further, the other named Officers present at the Plaintiff’s arrest, failed to report the false arrest.
83. Likewise, when the Defendants “Officers” were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
84. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning Jackson.

85. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely detaining, falsely imprisoning, falsely arresting and maliciously prosecuting the Plaintiff.
86. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of her rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983 and/or 1986.
87. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of her rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
88. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
89. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of her rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
90. That Plaintiff, as an African American female, was deprived of her right to equal protection under the law and was targeted and had her rights violated based on her race in violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
91. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene, stop and report, and the falsification of reports and evidence to deprive or hinder the Plaintiff's right to justice, and to injure her.

92. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
93. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
94. That the Plaintiff's false detention, false arrest, false imprisonment, battery, assault, and violation of her constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest, prosecution and injuries.
95. The Defendant "Officers" actions on January 18, 2021, were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performing to the detriment of the Plaintiff.
96. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, battered, assaulted, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sections 1983, 1985 and 1986 and the Constitution of the State of New York.
97. That by reason of the aforesaid, the Plaintiff was deprived of her liberty, lost income, battered, injured, and she was damaged.

98. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TENTH THROUGH THIRTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1983, BY POLICE OFFICER LANDY, SGT. HUGHES, JOHN AND JIM IN
THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,
THE PLAINTIFF ALLEGES:**

99. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "98" with the same force and effect as if more fully and at length set forth herein.

100. That at all times hereinafter mentioned, the Defendant "Police Officer Landy" was employed by the Defendant City and/or NYPD and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

101. That at all times hereinafter mentioned, the Defendant "Sgt. Hughes" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

102. That at all times hereinafter mentioned, the Defendants "John and Jim" were employed by the Defendant City and/or NYPD and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

103. That at all times hereinafter mentioned, the Defendant "Officers," individually and collectively, were acting pursuant to orders and directives from Defendant City and/or NYPD.

104. That during all times hereinafter mentioned, the Defendants “Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of City and/or NYPD, and engaged in the illegal conduct set forth in this Complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.

105. That the unlawful and illegal conduct of Defendants “Officers” deprived Plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- i. The right of the Plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
- ii. The right not to be discriminated against based upon the Plaintiff’s race, creed, sex, or sexual orientation;
- iii. The right to Due Process Law;
- iv. The right to equal protection under the law; and
- v. The right not to be subjected to cruel and unusual punishment.

106. That by reason of the aforesaid violations such as, seizure of Plaintiff’s person, her false detention, battery, falsifying evidence, and discrimination, the Defendant Police “Officers” violated Plaintiff’s rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, “the Officers” and violated 42 U.S.C. §1983.

107. That as a direct proximate result of “the Officers” actions, the Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.

108. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

109. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FOURTEENTH THROUGH SEVENTEENTH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICER LANDY, SGT.
HUGHES, JOHN, AND JIM IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

110. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "109" with the same force and effect as if more fully and at length set forth herein.

111. That at all times hereinafter mentioned, the Defendant "Police Officer Landy" was employed by the Defendant City and/or NYPD and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

112. That at all times hereinafter mentioned, the Defendant "Sgt. Hughes" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

113. That at all times hereinafter mentioned, the Defendant "John" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

114. That at all times hereinafter mentioned, the Defendant “Jim” was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
115. That at all times hereinafter mentioned, the Defendants “Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant “City”.
116. That during all times hereinafter mentioned, the Defendants “Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of City and/or NYPD, and conspired to engage in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
117. That the Defendant “Officers” conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
118. That by reason of the aforesaid violations such as, seizure and search of Plaintiff’s person, her false detention, false arrest/imprisonment, battery, assault, malicious prosecution and falsifying evidence, and discrimination, the Defendant Police “Officers” violated Plaintiff’s rights and privileges as provided to her in the Constitution of the United States of America and provided to her in the Constitution of the State of New York, and laws thereto, “the Officers” and violated 42 U.S.C. §1985.
119. That as a direct proximate result of “the Officers” actions, the Plaintiff was detained, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
120. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

121. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN EIGHTEENTH THROUGH TWENTY-FIRST CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICER LANDY, SGT.
HUGHES, JOHN, AND JIM IN THEIR INDIVIDUAL CAPACITIES AND AS
AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

122. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "121" with the same force and effect as if more fully and at length set forth herein.

123. That at all times hereinafter mentioned, the Defendant "Police Officer Landy" was employed by the Defendant City and/or NYPD and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

124. That at all times hereinafter mentioned, the Defendant "Sgt. Hughes" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

125. That at all times hereinafter mentioned, the Defendant "John" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

126. That at all times hereinafter mentioned, the Defendant "Jim" was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were

performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

127. That at all times hereinafter mentioned, the Defendants "Officers", individually and collectively, were acting pursuant to orders and directives from Defendant, The City of New York.

128. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same the "Officers" neglected or refused to do so.

129. That the Officers, each of them could have aided or prevented the seizure and search of Plaintiff's person, the Plaintiff's false detention, the battery, the falsifying of evidence, and discrimination, the Defendants "Officers" refused or neglected to do so, and thereby violated Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, the "Officers" and violated Plaintiff's right under 42 U.S.C. §1986.

130. That as a direct proximate result of the "Officers" actions, the Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

131. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

132. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, Attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the twenty-first causes of action, plus attorney's fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
December 15, 2021

/S/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
December 15, 2021

/s/ ROYCE RUSSELL
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GABRIELLE JACKSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MARIA LANDY TAX ID # 947153, SGT. WILLIAM HUGHES TAX ID # 952868, AND POLICE OFFICERS JOHN AND JIM DOE, (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN) ALL SUED IN THEIR CAPACITIES AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street Floor 18
New York, NY 10120
(718) 785 8890

To: City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Police Officer Maria Landy Tax ID #947153 New York City Police Department One Police Plaza New York, N.Y. 10007	Sgt. William Hughes Tax ID #952868 New York City Police Department One Police Plaza New York, N.Y. 10007
The New York City Police Department 1 Police Plaza New York, New York 10038	Police Officers John and Jim Doe New York City Police Department One Police Plaza New York, N.Y. 10007	

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 15, 2021

Signature

/s/ ROYCE RUSSELL
Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on